

WALKER v. YADAV ENTERPRISES, INC.

23CV46729

“MOTION” FOR ADMISSION OF MELISSA CIZMORRIS TO THE BAR OF THIS COURT PRO HAC VICE

Melissa L. Cizmorris of Akerman LLP, applies to appear as counsel pro hac vice to represent defendants in association attorney of record pursuant to California Rule of Court 9.40.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

The filed “motion” fails to contain this language; however, the Court views this labeling of the matter as a misnomer, as a pro hac vice request is an application that can even be submitted on an ex parte basis, and therefore the Court addresses the merits.

Counsel who are not active members of the California State Bar and have not been granted permission to appear pro hac vice are prohibited from representing a party in California courts. (Gentis v. Safeguard Bus. Systems, Inc. (1998) 60 Cal.App.4th 1294, 1308.) Counsel licensed in another state may, in the court's discretion, be permitted to appear as counsel pro hac vice if counsel is associated with an attorney of record who is an active member of the California bar. (Cal. Rules of Court, rule 9.40(a).)

Based on the verified application of Melissa Cizmorris, the request is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the Order submitted by defendants.

DELING v. CORSON

22CV46366

MOTION OF PLAINTIFF'S COUNSEL TO BE RELIEVED

Attorney Gregory E. Martin moves to be relieved as counsel of record for plaintiff pursuant to Code of Civil Procedure Section 284 and Rule of Court 3.1362.

Based on counsel's filed declaration which meets the statutory requirements, the motion is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the Order submitted by counsel.